

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR EXAMINERS

STATE OF COLORADO

Case No. 2017-161

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF THE APPLICATION FOR LICENSURE TO PRACTICE
PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF AMANDA
CIMINELLI, REGISTRATION NO. LPCC 14050, LICENSE NO. LPC (Pending),

Applicant.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional Counselor Examiners ("Board") and Amanda Ciminelli ("Applicant") as follows:

1. Applicant was registered to practice as a Professional Counselor Candidate ("LPCC") in the State of Colorado on October 28, 2014, having been issued registration number LPCC 14050, and is currently so registered.

2. By application dated December 7, 2016, Applicant applied for licensure to practice as a Licensed Professional Counselor ("LPC") in the State of Colorado ("Application").

3. The Board has jurisdiction over Applicant, the Application, and the subject matter of this Stipulation and Final Agency Order ("Order").

4. It is the intent of the parties and the purpose of this Order to provide for a settlement of all matters arising out of the Application without the necessity of holding a formal hearing. This Order is a full and final resolution of case number 2017-161. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Board or Applicant, as of the effective date of this Order.

5. Applicant admits the following:

a. On or around October 25, 2016, Applicant registered to take two (2) mental health jurisprudence ("JP") examinations on the same day, circumventing the ten (10) day waiting period between examination attempts.

b. On or about December 7, 2016, Applicant passed the JP exam and completed her application for licensure as a LPC in the State of Colorado, and her licensure request is currently pending.

6. By virtue of the facts admitted in paragraph 5 above, Applicant admits and the Board finds that the above conduct is a violation of §12-43-222(1)(s), C.R.S., which states:

§12-43-222. Prohibited activities--related provisions. (1) A person licensed, registered, or certified under this article violates this article if the person:

(s) Has resorted to fraud, misrepresentation, or deception in applying for or in securing licensure or taking any examination provided for in this article.

7. By virtue of the admissions contained in paragraphs 5 and 6, Applicant specifically agrees to accept a license subject to the terms and conditions outlined below. Applicant further agrees that the Board is authorized by §§12-43-212 and 12-43-224(3)(c), C.R.S., to grant Applicant a license. Applicant consents to the following limitations to her license within the meaning of §24-4-104(11), C.R.S. Applicant acknowledges that by accepting this license in lieu of a formal hearing, Applicant waives all remedies outlined in §§12-43-212 and 24-4-104(9), C.R.S.

ADMONISHMENT

8. On the basis of the findings set forth in paragraphs 5 and 6, the Board hereby admonishes Applicant for a violation of §12-43-222(1)(s), C.R.S. This Order is effective as a Letter of Admonition, set forth by §12-43-224(3)(d), C.R.S. As part of the admonishment, Applicant agrees to the following terms as a Board Order:

CONTINUING EDUCATION

8. Within twelve (12) months of the effective date of this Order, Applicant must successfully complete eight (8) hours of Board-approved professional continuing education ("CE") courses in the area of ethics. Applicant shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Applicant shall ensure that a certificate of completion is provided to the Board. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other registration or licensure requirements.

TERMS AND CONDITIONS

9. Applicant will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

10. All expenses incurred or associated with education or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Applicant and not the Board.

11. In the event Applicant relocates at any time prior to completing the terms of this Order, Applicant shall notify the Board of the change of address within 30 days of the effective date of such change.

12. Applicant is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §12-43-224, C.R.S., and hereby waives those rights. Further, Applicant also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

13. This Order is entered into by Applicant voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to formal hearing on all matters herein.

14. This Order shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

15. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal disciplinary hearing pursuant to §12-43-224, C.R.S.

16. Applicant acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Applicant to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

17. This Order constitutes the entire agreement between Applicant and the Board. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

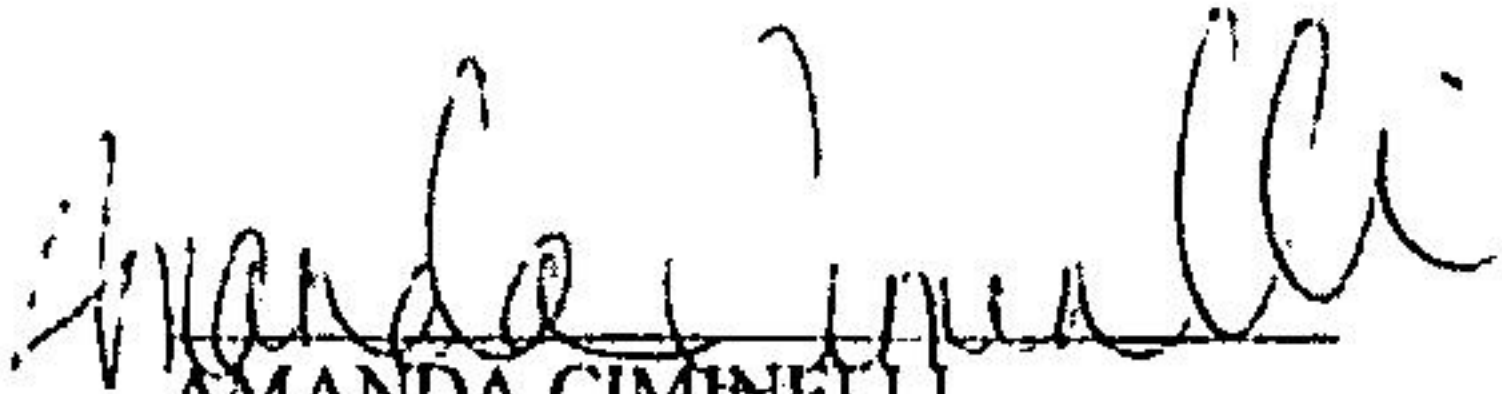
18. This Order shall become effective upon (a) mailing by first-class mail to Applicant at Applicant's address of record with the Board, or (b) service by electronic means on Applicant at Applicant's electronic address of record with the Board. Applicant hereby consents to service by electronic means if Applicant has an electronic address on file with the Board.

19. This Order shall be admissible as evidence at any hearing held before the Board.

20. This Order shall be a public record in the custody of the Board.

AGREED TO AND ACCEPTED BY:

APPLICANT


AMANDA CIMINELLI
LPCC 14050
LPC (Pending)

AGREED TO AND ORDERED BY:

STATE BOARD OF LICENSED
PROFESSIONAL COUNSELOR EXAMINERS



DARCIE MAGNUSON
Program Director

Effective this 3rd day of

April, 2017.